IN THE DISTRICT COURT AT LA HELD ON WEDNESDAY THE 14TH DAY OF MAY, 2025. BEFORE HER WORSHIP ADWOA BENASO ASUMADU-SAKYI, SITTING AS MAGISTRATE

SUIT NO: A10/1/23

RITA ESENAM GADZO
OF H/NO. C.16 LASHIBI-ACCRA >>> PLAINTIFF

VRS.

KWESI AGYEMANG A.K.A KWASI AGYEMANG
OF LK 8, SPINTEX NEAR CAL BANK- ACCRA >>> DEFENDANT

PARTIES:
Plaintiff present
Defendant present

JUDGMENT

INTRODUCTION

The Plaintiff filed this instant suit on the 14th September, 2023 against the Defendant and prayed for the following reliefs;

1. An order at defendant to pay cash the sum of Twenty One Thousand Six Hundred and Thirty Eight Ghana Cedis Fifty Pesewas (GH¢ 21,638.50) being cost of repairs on plaintiff's vehicle after defendant drove his vehicle carelessly and cause damage to plaintiff's vehicle (CADILAC EXCALADE EST PICK UP) on the 24th December, 2022 at Lashibi.

2. Cost.

Both parties were ordered to file pleadings on the 14th of December, 2023 and both the Plaintiff and the Defendant complied with this order on the 11th of January, 2024 and 22nd January, 2024 respectively.

The Plaintiff then filed a Reply to the statement of defence on the 31st of January, 2024. Parties were then ordered to file their respective witness statements on the 5th of February, 2024 and both parties complied with the orders of the court and filed their respective witness statements on the 27th of March, 2024 and 2nd April, 2024 respectively. Case management conference was conducted on the 3rd of April, 2024 and hearing commenced on the 6th of May, 2024 and was completed on the 9th of April, 2025.

PLAINTIFF'S CASE

The Plaintiff's case is on the 24th of December, 2022 the Defendant crashed into her unlicensed Cadilac Excalade Est Pick Up vehicle which she had parked off the road and was offering for sale. That as a result of the Defendant's carelessness on the day in question her vehicle's fender, bumper, head light, head light bracket, front grill and fog light got damaged.

That the Defendant who was drunk on the said day did not only crash into her vehicle but into three other vehicles where were also parked and that he also crashed into someone's fence wall.

She states that after the accident the Defendant's wife pleaded with her to allow her and her husband fix the damage caused to the vehicle to which she agreed. She states further that unfortunately the front bumper the Defendant's wife purchased could not fit into her car and as a result she returned it.

That due to this she decided to import a bumper from the United States at a cost of Three Hundred and Fifty US Dollars (350.00 USD) whose cedi equivalent at that time was Four Thousand Three Hundred and Seventy Five Ghana Cedis (GH¢4,375.00) and a fender which also cost Three Hundred and Seventy Six US Dollars (376.00 USD). She states that she changed her mind when the Defendant's wife once again pleaded for her to give them another opportunity to straighten the car instead of buying new parts from the US.

She states that even though she agreed to this suggestion of the Defendant's wife the Defendant and his wife once again failed to fix the car and as a result she decided to fix the car herself. She therefore paid an amount of Two Hundred Ghana Cedis (GH¢200.00) for the car to be straightened and an extra One Hundred and Fifty Ghana Cedis (GH¢150.00) for the car to be towed to the straightener's shop.

She states that due to the inability of the Defendant to repair her vehicle she had to had to resort to replacing the vehicle herself and as such r esult she ordered the damaged parts from the USA and incurred a total cost of Twenty One Thousand Six Hundred and Thirty Eight Ghana Cedis Fifty Pesewas (GH¢21,638.50). She states that she bought the following items:

a. Front grille at a cost of Seven Hundred US Dollars (700.00 USD) whose cedi equivalent was Eight Thousand Seven Hundred and Fifty Ghana Cedis (GH¢8,750.00),

b. Headlight at a cost of Five Hundred and Fifty US Dollars (550.00 USD) whose cedi equivalent was Six Thousand Eight Hundred and Seventy Five Ghana Cedis (GH¢6,875.00),

c. Head light bracket at a cost of Fifty Five UD Dollars (55.00 US Dollars) whose cedi equivalent was Six Hundred and Eighty Seven Ghana Cedis Five Pesewas (GH¢687.5) and

d. Fog light at a cost of Thirty Four US Dollars Eight cents (34.08 US Dollars) whose cedi equivalent was One Thousand Six Hundred and Seventy Six Ghana Cedis (GH¢1,676.00).

She goes on to state that she paid an amount of One Thousand Five Hundred Ghana Cedis (GH¢1,500.00) to the sprayer, Two Hundred Ghana Cedis (GH¢200.00) to the mechanic for the car to be examined and Four Hundred Fifty Ghana Cedis (GH¢450.00) for the police to examine the car. She further states that all efforts to get the Defendant to pay the total amount she spent in repairing the vehicle has proven futile and is rather complaining that the amount she is claiming to have spent in fixing the vehicle was too much.

DEFENDANT'S CASE

The Defendant's case is that on the 24th of December, 2023 at about 3:30pm he was supplying second hand clothing which he usually does when he inadvertently hit the Plaintiff's car with his car. He states that after the accident he pleaded with the Plaintiff to allow him to repair the minor dents caused as a result of the accident at a nearby garage but she refused. That a while later he received a call from one of the mechanics who informed him that he had been asked by the Plaintiff to fix her vehicle. That after a few minutes the Plaintiff called him and confirmed the story of the mechanic and then proceeded to ask him to go to the said garage and get the car fixed.

He further states that he quickly went to the garage and paid an amount of One Thousand Three Hundred Ghana Cedis (GH¢1,300.00) to the auto welder and auto sprayer for the dents to be fixed. He goes on to state that the damaged bumper and car grille were fixed and the only outstanding issue was the headlight which had removed from its socket and needed some hinges or bolts and nuts to be inserted to tighten it up into the socket. He goes on to state that he received a call from the mechanic who informed him that the Plaintiff had bought a new head light for the car to be fixed even though he had asked the mechanic if a headlight could be procured at Abossey Okai to replace the damaged one.

He further states that he did not hear from the Plaintiff until the middle of 2023 after the police called and informed him that the Plaintiff had submitted a bill of Twenty One Thousand Ghana Cedis (GH¢ 21,000) as the total cost she incurred in fixing her vehicle.

He states that he conducted checks on the accuracy of the cost of repairs being claimed by the Plaintiff and his investigations brought to light that the Plaintiff had purchased new parts and fixed them in the car even though those parts were never damaged as a result of the accident and that she did that to make the vehicle have a brand new look so as to attract potential buyers.

He also states that the Plaintiff never has a prior discussion with him on her decision to purchase new parts and also states that he is not in a position to pay the amount being claimed by the Plaintiff.

DISCUSSION OF THE LAW

The law is trite that a party who asserts a fact assumes the responsibility of proving same and thus the burden of producing evidence as well as the burden of persuasion is therefore cast on that party and the standard required is provided for by the virtue

of sections 10,11 and 12 of the Evidence Act, 1975 (NRCD 323). The above stated provisions have received judicial blessings by the Supreme Court who has pronounced on them in the past to be the nature and standard of proof in civil cases.

This position of the law has been reiterated in the case of **Ackah v. Pegrah Transport Ltd And Others [2020] SCGLR 728** where in unanimously dismissing an appeal, the Supreme Court held as follows:

> "It is a basic principle of the law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is carried and it includes the testimonies of the party and material witnesses, admissible hearsay, documentary and things (often described as real evidence), without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the court or tribunal of fact such as a jury. It is trite law that matters that are capable of proof must be proved by producing evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact is more probable than its non-existence. This is a requirement of the law on evidence under sections 10(1) and (2) and 11(1) and (4) of the Evidence Act, 1975 (NRCD 323),"

See Ababio v. Akwasi IV [1994-1995] GBR 774.

The Court has a duty to examine the evidence on record and determine whether the Plaintiff has met the burden of proof. It is settled law that she who alleges must prove her case on the strength of her own case. This principle was enunciated in the case of **Owusu v. Tabiri and Another [1987-88] 1 GLRR** as follows:

> "It was a trite principle of law that who asserted must prove and win his case on the strength of his own case and not the weakness of the defence".

In civil cases the standard of proof is by a preponderance of probabilities which was defined in the case of **GIHOC Refrigeration and Household v. Jean Hanna Assi [2005-2006] SCGLR 458** as a party's ability to persuade the Honourable Court that the existence of a relevant fact is more probable than not, this is what the Court had to say:

> "Since the enactment of NRCD 323, therefore, except otherwise specified by statute, the standard of proof (burden of persuasion) in all civil matters is the preponderance of the probabilities based on a determination of whether or not a party with the burden of producing evidence on the issue".

Since the defendant denied that all assertions made by the plaintiff against him, the Plaintiff has a duty to prove her case by leading sufficient evidence to convince the court that her story is probably true. In the case of Zabrama v. Segbedzi [1991] 2 GLR 223 at page 246 the court held as follows:

> "a person who makes an averment or assertion, which is denied by his opponent, has the burden to establish that his averment or assertion is true. And, he does not discharge this burden unless he leads admissible and credible evidence from which the fact or facts he asserts can properly and safely be inferred. The nature of each averment or assertion determines the degree and nature of that burden".

I will discuss whether or not the Defendant hit the Plaintiff's vehicle on the 24th of December, 2024.

The Plaintiff testified on oath by relying on her witness statement which was adopted as her evidence in chief on the 6th of May, 2024 and she repeated her assertions against the Defendant. She stated as follows:

> 2. That I displayed unlicensed Cadilac Exalade EST Pick up vehicle was being sold and parked off the road in an attempt to show same to interested buyers.

3. That, on 24th December, 2022, Defendant drove his vehicle carelessly, went off the motor road onto the compound where my vehicle was parked and run into it causing damage to the Fender, Bumper, Head Light Bracket, Front Grill and Fog Light.

The Defendant admitted that the Plaintiff's vehicle was damaged through an accident he caused. I will reproduce the relevant portions of the defendant's witness statement which was adopted as his evidence in chief as follows:

> 2. That on that faithful day, I was on an errand to supply second hand clothing to my client where a car cross me and I inadvertently hit the car I was driving with that of the Plaintiff car.

Admission is defined by the 7th edition of the Black's Law Dictionary as a voluntary acknowledgment of the existence of facts relevant to an adversary's case. Justice Brobbey in his book, Essentials of Ghana Law of Evidence at page 112 explained admissions to mean the fact or issue which has been conceded and is no longer in contention.

It is trite that where a matter is admitted by an adversary, proof is dispensed with as held in the case of Samuel Okudzeto Ablakwa and Another v. Jake Obetsebi Lamptey and Another [2013-2014]1 SCGLR 16.

The Supreme Court in the case of In Re Asere Stool, Nikoi Olai Amontia IV v. Akofia Oworsika III (2005-2006) SCGLR 637, holding e of the head notes states that:

> "Where an adversary has admitted a fact advantageous to the cause of a party, the party does not need any better evidence to establish that fact than by relying on such admission which is an example of estoppel by conduct. It is a rule whereby a party is precluded from denying the existence of some state of facts which he has formerly asserted".

See Banahene v.Adinkra [1976] 1 GLR 346 and Manu v. Nsiah [2005-2006] SCGLR 25.

With this admission by the Plaintiff there was no need for the Plaintiff to proof that the defendant hit her parked vehicle and caused damage to it.

There is however a dispute as to what was damaged to the Plaintiff's vehicle as a result of the accident. The Plaintiff testified that the following parts of her vehicle were damaged:

a. Fender
b. Bumper
c. Head Light Bracket
d. Front Grill and
e. Fog Light

The defendant denied the story of the Plaintiff in respect of the parts of her vehicle which got damaged and stated that it was rather the following parts that got damaged:

a. The head light and
b. The bumper which got damaged.

With this denial the Plaintiff therefore bears the burden of proof on what exactly was damaged in her car as a result of the accident. In proof of her case she tendered into evidence Exhibits A series which are photographs of the damaged vehicle.

A careful examination of the record of proceedings makes it clear that the Defendant failed to cross examine the Plaintiff on Exhibits A series and it is trite that the failure to cross examine a witness on vital matters testified to is deemed to be an admission of those matters and a party need not call further evidence on that.

See Fori v. Ayirebi [1966] GLR 627 and Billa v. Salifu [1971] 2 GLR 87.

That notwithstanding, the pictures of the Plaintiff's damaged vehicle isn't enough to prove her case but the Plaintiff cross examined the defendant on the fact that the bumper, fender and one side of the headlight got damaged and the Defendant admitted to this fact.
This is what the Defendant had to say on the 17th of February, 2025:

> Q. Do you also remember that it was 4 cars that you bashed but it was mine that was most damaged
> A. The cars were 3 and not 4
> Q. You will agree with me that this accident affected the fender, bumper, headlight bracket, front grill and fog light.

> A. It was the bumper, fender, one-side of the headlight that got damaged. I do not know what you are talking about in respect of the other things.

With this admission by the Defendant it is more probable that the fog light also got damaged since it's located in the bumper which got damaged and denial of this fact without leading cogent evidence does not discredit the testimony of the Plaintiff. The Defendant also failed to discredit the Plaintiff's case that the Plaintiff's vehicle bracket and front grill also got damaged. All the Defendant did was to enter the witness box and repeat his assertions which mean he did not meet the burden of proof on him.

In the case of Klah v. Phoenix Insurance Company limited [2012] SCGLR 1139, the Supreme Court held as follows;

> "Where a party makes an averment capable of proof in some positive way in some positive way e.g. by producing documents, description of things, reference to other facts, instances and his averment is denied, he does not prove it by merely going into the witness box and repeating that averment on oath or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances from which the Court can be satisfied that what he avers is true."

See the case of Majolagbe v. Larbi [1959] GLR 190.

From the foregoing and from Exhibit A series I hereby conclude that the plaintiff has been to prove that the Fender, Bumper, Head Light Bracket, Front Grill and Fog Light of her vehicle got damaged.

The next issue is whether or not the Plaintiff repaired the damage caused to her car.

The Plaintiff's case is that she repaired the vehicle after a year when the defendant failed to do so. This is what she had to say in her witness statement which was adopted as her evidence in chief;

> 4. That Defendant's wife suggested that, I should allow them work on the car which I admitted. She later brought Front Bumper which did not fit into the car and so she returned it.
>
> 5. That I asked Defendant to straighten the damaged parts instead of him buying the new ones.
>
> 6. That though we both agreed that, the Defendant will straighten the Bumper instead of buying a new one, he refused. The car was park in the Mechanic shop suggested by the Defendant without any attempt and whenever I pass by to see if he is working on it, I realized that nothing is being done on the car.
>
> 7. That in order for the car not to deteriorate at the Mechanic shop, I paid GH¢ 200.00 for the bumper to be straighten and GH¢ 150.00 for their transportation.
>
> 8. That Defendant refused to replace the damage items or repair them stating that he could not get the damage parts in Ghana since the car is a USA brand and so I did same by myself by ordering the items from USA which I incurred the total cost of GH¢ 21,638.50.
>
> 9. That I bought Front grille USD700 equivalent to GH¢8,750.00, Headlight USD550.00 equivalent to GH¢6,875.00, Head light bracket USD55 equivalent to GH¢ 687.5 and Fog Light USD 34.08 equivalent GH¢1,676.00.
>
> 10. That I also paid GH¢1,500.00 for the sprayer, GH¢ 200 to the mechanic for examine of the car and GH¢ 450.00 for police examination.

Although the Defendant cross examined the Plaintiff and a careful perusal of the record of proceedings clearly shows that her testimony was not discredited. This is what transpired on the 17th of February, 2025:

> Q. Was I not the one who repaired the car for you?
>
> A. I fixed the car so I do not know what you are talking about
>
> Q. If I was not the one who repaired the car I would not have told you same and after you came for the car any new issue with the car has nothing to do with me
>
> A. I bought all the parts of the car that got damaged so I do not know what you are talking about
>
> Q. The damaged caused to your car has been fixed by the mechanic who I sent the car to
>
> A. I towed the car to the mechanic shop and I bought all the parts that was used to repair same
>
> Q. You did not import any parts from outside the country, all the damage was fixed in the shop with parts from Ghana
>
> A. I gave you the opportunity to try and get the parts from Ghana but the one you got did not fit so I told you and your wife I had to import it from abroad
>
> Q. The damage which was caused was all fixed by the welder so this story that you imported parts is not true.
>
> A. The various parts of the car got damaged and you could not get the parts.
>
> Q. I am putting it to you that I was the one who fixed the car
>
> A. That is not true
>
> Q. Did I call you after the car was repaired?
>
> A. No you did not

Q. That is not true, I called you and one police officer and I informed her that I was not reaching you and she promised to come to the mechanic shop herself

A. That is not true

Q. After fixing the car everything was in good condition and you came for the car. It was after a while that you called to inform me that you had spent a lot on the car

A. That is not true. I never met you at the mechanic shop. I fixed the car and after doing so I reported it to the police station

Q. Did the police woman call you to inform you that I had finished the car so you should come for it?

A. That is not true. It was rather the police inspector who called you to inform you that you had finished fixing the car so you should come to the police station as I had lodged a complaint against you. After you came you complained that the cost of repairs were too huge and I knew you were a man of straw so I asked how much you could afford and you murmured and so I left. Later the police chief called me and I asked the chief to speak to you and upon waiting for a while there was no response from anyone so I instituted this action.

Q. I put it to you that when chief invited us, he asked if you took part in the repair of the car and I said I did.

A. That is true but you answered that was not true. You said you paid the workmanship of the straightener but I also paid him which meant he had received double for the work.

Q. You informed the sprayer that he should work on another part of the car and that you would pay for that after he had finished repairing the car.

A. All you are saying is not true

Q. It is true or not that you were informed by the sprayer that I paid for everything with the car

A. All you are saying is not true

The Defendant on the other hand testified that he was the one who repaired the Plaintiff's vehicle. I will reproduce the relevant portions of his witness statement which was adopted as his evidence in chief as follows:

4. That I called the mechanic instantly at the nearby garage and he came to assess the car and the mechanic told Plaintiff that he can repair those minor dents which she declined.

5. That Plaintiff later send the matter to the Police and both of us were invited to write our statement. I was asked about my intention and I told the Police that, I am ready to repair the car for the Plaintiff.

6. That one of the mechanics informed me that the Plaintiff had brought the car to the garage to be fixed. Right from there, Plaintiff called to inform me that she had sent the car to the garage I suggested earlier and that I should go there and get the car fixed.

7. That the damaged parts to be fix were the Headlight, Left headlight and bumper and I was able to fix the left headlight and the bumper.

8. That I told the mechanic to look for a Head light at the Abosey Okai to replace the damaged one but the mechanic informed me the following day that the Plaintiff brought in a new Head Light for the car to be fixed.

9. That the mechanic informed me of the completion of his work told me I paid GH¢1,500.00 for the mechanic and the sprayer.

10. That, I did not hear from Plaintiff until about the middle of the year when the Police called that the Plaintiff had submitted a staggering bill of GH¢21,000.00 being the cost she incurred in fixing the already fixed car.

11. That I was able to fix the Bumper and left head light. The only outstanding issue was the Headlight which had moved from its sockets and needed some hinges or bolts and nuts to tighten it up into its socket.

12. That checks I conducted indicated that the Plaintiff has fixed new parts on the car which were dented to make it look new to attract potential buyers.

Even though the defendant testified that he was the one who fixed the car, during cross examination he admitted that he received a call from the mechanic who informed him that the Plaintiff had brought a new light to be fixed. This is what he had to say during cross examination on the 9th of April, 2025:

Q. Do you remember that the fog light, headlight and grill has been changed after straighter finished everything

A. Yes I remember

Q. So if you were the one who fixed the car where did you get those items from?

A. The mechanic informed me that he would be able to get the headlight from Abosiokai but unfortunately she informed me that the person had travelled for a funeral. The following day the mechanic informed me that you had brought a new light to be fixed. I then asked the mechanic why she brought

> the headlight when she asked me to fix same. It was after the plaintiff brought the light that she travelled and that the time that all efforts to reach you futile.

With this admission by the defendant that it was the Plaintiff who brought a headlight for same to be fixed, the plaintiff need not proof that fact. See the case of In Re Asere Stool; Nikoi Olai Amontai IV (Substituted by) Tafo Amon II v. Akotia Owirsika III (Substituted by) Laryea Ayiku III (supra).

He also admitted that even though there was an attempt by his wife to repair the car she was unable to do so. This is what he had to say;

> Q. What you are saying is a lie because I agreed on the same day with your wife that she could go ahead and fix the car but the bracket on the bumper and the grill was not sure they would get it in Ghana and she responded with how much it would cost if it is ordered from abroad. I quickly checked and told her it was 55 dollars and she said we should but that one from outside and the other items she would try and look for them in Ghana. All these conversations were had in your absence.
>
> A. That is not true
>
> Q. Do you remember that your wife brought a bumper that didn't fit the car?
>
> A. Yes I remember. The mechanic explained that the damage was not that serious so we could fix the bumper and you agreed and after it was fixed you inspected same and you were satisfied. No bumper was sent from outside and the mechanic can attest to that.

The Defendant also admitted that the Plaintiff had to import vehicle parts from abroad to fix the car. This is what transpired:

Q. What you are saying is true because the cost of the imported bumper was 6,800 dollars but you were not the one who fixed it

A. That is correct

The Plaintiff went on to state that she never met the defendant at the mechanic shop even though he claims he was the one who fixed the vehicle and paid an amount of GH¢ 200.00. This is what the Defendant had to say during cross examination:

Q. When the car was parked at the shop I never met you there and yet you are saying you were the one who fixed it. I want to ask you how much the cost of fixing the bumper was because I was the one who fixed it and paid for the fixing

A. I paid GH¢ 200

Q. The straighter told me that fixing it will cost of GH¢ 200 and conveying it will cost 150 so in all I gave the straighter GH¢ 350.

A. That is not true. I was the one who paid for the petrol cost and the car was sent to Nungua by the mechanic to be fixed.

Q. What you are saying is not true because it took a year for the car to be fixed

A. After I finished fixing the car I questioned the mechanic why the plaintiff was not coming for the car and so I went to the police station and informed the police woman that I had fixed the car but I was not hearing from the plaintiff and she said I should be patient because it might be that the complainant had travelled.

It is interesting to note that even though the Defendant kept mentioning a sprayer who he claimed to have paid an amount of GH¢ 150 to and a mechanic and yet he failed to call them to corroborate his testimony. It was his duty to call these material witnesses whose evidence was essential to the determination of the issue of whether

or not he was the one who fixed the Plaintiff's vehicle. The failure to do so is fatal to his case.

See Tetteh v. The Republic [2001-2002] SCGLR 854 and Gligah & Atitso v. The Republic [2010] SCGLR 870.

It is clear from the above discussion that the Plaintiff's case is more probable than that of the Defendant and I hereby conclude she has been able to prove on a preponderance of probabilities that she imported parts from the United States and bore the cost of fixing the vehicle after the Defendant failed to do so.

The next question to be addressed is whether or not the Plaintiff is entitled to an amount of Twenty One Thousand Six Hundred and Thirty Eight Ghana Cedis Fifty pesewas (GH¢ 21,638.50) being the cost she incurred in repairing her vehicle.

In the case of Ankomah v. City Investment Company Limited [2012] 2 SCGLR 1123 at 1134 where the Supreme Court speaking through Dotse JSC stated that if the Plaintiff expects the court to award him the amounts specially pleaded in the statement of claim, then he ought to strictly prove the amounts so claimed.

In my opinion, the court will only grant what you have been able to prove and not necessarily all the claims you have made. It has been established the Plaintiff's vehicle was damaged through the defendant's carelessness.

The Plaintiff also testified that she spent an amount of Twenty One Thousand Six Hundred and Thirty Eight Ghana Cedis Fifty pesewas (GH¢ 21,638.50) to repair same. This testimony has not been discredited by the Defendant from the record of proceedings and he also failed to lead cogent evidence to disprove the Plaintiff's allegations that was what she spent in repairing her vehicle. Having failed to

discredit the Plaintiff's testimony, the Defendant must therefore refund the amount the Plaintiff spent in repairing her vehicle which was damaged through the carelessness of the Defendant. There is however evidence on record that the Defendant has refused to refund the amount Plaintiff spent in repairing the vehicle. Accordingly in the interest of justice he must be ordered to pay the amount she spent in repairing it and I hereby hold so.

CONCLUSION

The Plaintiff's case succeeds in its entirety and I enter judgment in her favour and make the following orders;

a. The Defendant is ordered to pay an amount of Twenty One Thousand Six Hundred and Thirty Eight Ghana Cedis Fifty pesewas (GH¢ 21,638.50) to the Plaintiff being the cost of repairs on plaintiff's vehicle.

There will be no orders as to cost.

SGD

H/W ADWOA BENASO ASUMADU-SAKYI

MAGISTRATE